

FIRST ENDORSEMENT

Acting Executive Director Matthew Kadushin, Civilian Complaint Review Board to Deputy Commissioner Amy Litwin, Department Advocate's Office, December 28, 2022. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2021-23480 against Police Officer Philip Huynh, Tax Registry No. 963074. This case was conferenced on December 8, 2022, before Assistant Deputy Commissioner of Trials Jeff Adler, who approved the negotiated penalty of a Command Discipline Schedule B and the forfeiture of ten (10) vacation days, after Police Officer Philip Huynh accepted the finding(s) of substantiation of the allegations contained in the Charges and Specifications.

Matthew Kadushin

Matthew Kadushin
Acting Executive Director
New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO.
2021-23480

BOOK & PAGE NO.
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PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, HUYNH	FIRST PHILIP	M.I.	COMMAND 068 PRECINCT
SHIELD NO. 21011	TAX REGISTRY NO. 963074	SOCIAL SECURITY NO.		DATE APPOINTED 01/04/2017
RANK/NAME OF COMPLAINANT DEPUTY CHIEF PROSECUTOR THERESA FREITAS				COMMAND CCRB - APU
DATE OF CHARGES 06/10/2021		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL [X]
1 . Police Officer Philip Huynh, on or about May 19, 2019, at approximately 0345 hours, while assigned to 068 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, wrongfully used force, in that he used a taser against § 87(2)(b) without police necessity.	DISMISSED	B - COMMAND DISCIPLINE 10.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated.

Edward A. Cal 03/01/23
FIRST DEPUTY COMMISSIONER DATE

POLICE COMMISSIONER'S APPROVAL

☒ Approved

☐ Disapproved

☐ Other Action (Describe)

[Signature] 5/4/23
POLICE COMMISSIONER DATE

1 DC #2023-112

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner, March 1, 2023. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2021-23480 against Philip Huynh, Tax #963074, for the dismissal of the Charges and Specifications, and the issuance of a Schedule "B" Command Discipline with the forfeiture of ten (10) vacation days. Assistant Deputy Commissioner of Trials Jeff Adler, reviewed the case and made a favorable recommendation pertaining to the proposed settlement; I concur. **FOR YOUR APPROVAL.**

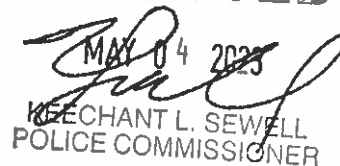


Edward A. Caban

FIRST DEPUTY COMMISSIONER

EAC/rn

APPROVED



MAY 04 2023
KEECHANT L. SEWELL
POLICE COMMISSIONER